

(2) Sections one, two and three of the Cotton Industry Act, 1923, which are due to expire on the seventeenth day of July, nineteen hundred and thirty-three, shall (subject in the case of section two to the provisions of subsection (1) of this section) continue in force for a period of five years from that date.

Short title.

2. This Act may be cited as the Cotton Industry Act, 1933, and the Cotton Industry Acts, 1923 to 1928, and this Act may be cited together as the Cotton Industry Acts, 1923 to 1933.

CHAPTER 31.

An Act to provide for the better organisation and development of the agricultural industry and of industries connected therewith by regulating the importation and sale of agricultural products and the production of secondary agricultural products; to amend the law with respect to the marketing of agricultural products; and to make further provision in connection with the matters aforesaid. [18th July 1933.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

PART I.

REGULATION OF IMPORTATION OF AGRICULTURAL PRODUCTS AND SALES OF HOME-PRODUCED AGRICULTURAL PRODUCTS.

Regulation
of importa-
tion of
agricultural
products.

1.—(1) Subject to the provisions of this section, the Board of Trade, after consultation with the Minister of Agriculture and Fisheries and with the Secretaries of State concerned with agriculture in Scotland and Northern Ireland respectively, may make an order regulating the importation into the United Kingdom of any such agricultural product as may be specified in the

order, if it appears to the Board, after such consultation as aforesaid,—

PART I.
—cont.

- (a) that there have been, or are being, taken all such steps as are practicable and necessary for the efficient reorganisation, by means of agricultural marketing schemes or schemes under this Act, of those branches of the agricultural industry in the United Kingdom in whose interests the order is made; and
- (b) that without an order under this section the effective organisation and development of the said branches of the agricultural industry in the United Kingdom under such schemes as aforesaid cannot be brought about or cannot be maintained;

and any order made under this section may contain such provisions as appear to the Board of Trade, after such consultation as aforesaid, to be necessary for securing the due operation and enforcement of the scheme of regulation contained in the order.

(2) Without prejudice to the generality of the powers conferred by the foregoing subsection, an order under this section may regulate the importation into the United Kingdom of the agricultural product to which the order relates, by determining for any such period as may be specified in the order—

- (a) the quantity of the product, or of any description thereof, which may be imported;
- (b) the descriptions of the product which may be imported.

(3) In deciding whether to make an order under this section, and in settling the terms of any such order, the Board of Trade shall, among other considerations, have regard to the interests of consumers of the product to which the order relates (including persons who purchase that product for the purpose of subjecting it to any treatment or process of manufacture) and to the effect which the regulation of the importation of that product into the United Kingdom is likely to have upon commercial relations between the United Kingdom and other countries; and the Board shall not make such an order unless they are satisfied that it is not at variance with any treaty, convention or

PART I.
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agreement for the time being in force between His Majesty and any foreign Power or between His Majesty's Government in the United Kingdom and the government of any other country.

(4) Any expenses incurred under this section by the Board of Trade for the purpose of regulating the importation of an agricultural product into the United Kingdom shall be defrayed out of moneys provided by Parliament.

Regulation
of sales of
home-
produced
agricultural
products.

2.—(1) Where—

- (a) the importation of an agricultural product into the United Kingdom is regulated by an order in force under the foregoing section; or
- (b) the Board of Trade certify that arrangements have been made, to the satisfaction of the Board, for controlling the importation of an agricultural product into the United Kingdom,

then, if it appears to the Minister of Agriculture and Fisheries and the Secretaries of State concerned with agriculture in Scotland and Northern Ireland respectively that an order under this section will conduce to the efficient reorganisation or organised development of any branch of the agricultural industry in the United Kingdom, or is necessary in order to secure the economic stability of any branch of that industry, the said Minister and Secretaries of State, acting in conjunction, may, subject to the following provisions of this section, make, in respect of the said agricultural product or any related product, an order regulating sales of the product which is the subject of the order by persons producing it in the United Kingdom or by boards administering agricultural marketing schemes, by determining for any such period as may be specified in the order—

- (i) the descriptions of the product which may be sold;
- (ii) the quantity of the product, or of any description thereof, which may be sold;

so, however, that nothing in an order under this section shall apply to any product in so far as it is produced outside the United Kingdom.

In this subsection the expression “related product” means, in relation to an agricultural product, any

agricultural product from which the first-mentioned agricultural product is wholly or partly manufactured or derived, or any agricultural product wholly or partly manufactured or derived therefrom.

PART I.
—cont.

(2) Any order made under this section may contain such provisions as appear to the said Minister and Secretaries of State to be necessary for securing the due operation and enforcement of the scheme of regulation contained in the order, and, subject to any directions which may be contained in the order, it shall be the duty of boards administering agricultural marketing schemes to exercise their powers in such manner as appears to them to be necessary for securing that the order is not contravened.

(3) Before making any order under this section, the said Minister and Secretaries of State shall consult the Board of Trade and the Market Supply Committee, and, if the order is in respect of a product the marketing of which is regulated by agricultural marketing schemes, shall also consult the boards administering those schemes.

(4) Any expenses incurred under this section by the Minister of Agriculture and Fisheries or a Secretary of State for the purpose of regulating sales of an agricultural product shall be defrayed out of moneys provided by Parliament, but such of the said expenses as the Joint Exchequer Board may determine to be properly payable by the Government of Northern Ireland shall be made good by means of deductions from the Northern Ireland residuary share of reserved taxes.

3.—(1) The Minister of Agriculture and Fisheries and the Secretaries of State concerned with agriculture in Scotland and Northern Ireland respectively, acting in conjunction, (hereafter in this section referred to as “the appointing authority”) shall appoint a committee for the United Kingdom, which shall be called, and is in this Act referred to as, “the Market Supply Committee.”

Market
Supply
Committee.

(2) It shall be the duty of the Market Supply Committee to review generally the circumstances affecting the supply of agricultural products in the United Kingdom

PART I.
—cont.

and to make recommendations to the said Minister and Secretaries of State as to any steps which ought, in the opinion of the committee, to be taken for regulating that supply, and, in particular, to give to the said Minister and Secretaries of State advice and assistance in connection with the discharge of their functions under this Part of this Act and to report to them on the operation of any order in force under this Part of this Act and of any arrangements made for controlling the importation of an agricultural product into the United Kingdom.

(3) The Market Supply Committee shall consist of a chairman and not more than four other persons, and the chairman and other members of the committee shall be appointed for such period, and subject to such conditions, as may be determined by the appointing authority.

(4) The meetings, quorum and procedure of the Market Supply Committee shall be regulated in accordance with regulations made by the appointing authority for the purpose, and the committee shall have power to act notwithstanding any vacancy among the members thereof.

(5) The appointing authority may appoint a secretary to the Market Supply Committee, and the committee may employ such officers, agents and servants as the appointing authority, with the approval of the Treasury, may determine.

(6) The appointing authority may pay such remuneration to the chairman and other members, and to the secretary, officers, agents and servants, of the Market Supply Committee, and such other expenses of the committee, as the appointing authority, with the approval of the Treasury, may determine.

(7) The expenses incurred under this section by the appointing authority shall be defrayed out of moneys provided by Parliament, but such of the said expenses as the Joint Exchequer Board may determine to be properly payable by the Government of Northern Ireland shall be made good by means of deductions from the Northern Ireland residuary share of reserved taxes.

PART II.

DEVELOPMENT SCHEMES FOR ORGANISING THE
PRODUCTION OF SECONDARY AGRICULTURAL PRODUCTS.

4.—(1) The boards respectively administering two or more agricultural marketing schemes, being schemes of which—

Submission
and
approval of
develop-
ment
schemes.

- (a) at least one is a scheme under the principal Act for regulating the marketing of a secondary product to which this Part of this Act applies; and
- (b) at least one is a scheme under the principal Act for regulating the marketing of an agricultural product from which that secondary product is wholly or partly manufactured or derived,

may submit for approval by the appropriate Minister a scheme (hereafter in this Act referred to as “a development scheme”) for organising, in connection with the said marketing schemes, the production of that secondary product in the area or in each area, as the case may be, to which any of the said agricultural marketing schemes which regulates the marketing of the secondary product applies.

(2) If the appropriate Minister is satisfied, with respect to any development scheme submitted in accordance with this section, that the scheme will conduce to the more efficient marketing, under the related marketing schemes, of the agricultural products to which those schemes respectively relate, then, subject to the provisions of Part I of the First Schedule to this Act, he may, after consultation with the Board of Trade, lay a draft of the development scheme before each House of Parliament, and if each House resolves that the scheme be approved, the appropriate Minister shall make an order approving the scheme in terms of the draft, and the scheme shall come into force at the same time as the order.

(3) The provisions of Part II of the First Schedule to this Act shall apply with respect to the amendment or revocation of a development scheme.

PART II.—*cont.*Administra-
tion of
develop-
ment
schemes.

5.—(1) Every development scheme shall provide for the administration of the scheme by a board, which shall (subject to the provisions of the scheme as to the filling of casual vacancies on the board) consist of—

- (a) a chairman and two other persons appointed by the appropriate Minister; and
- (b) such number of other persons as may be specified in the scheme, being persons elected in accordance with the scheme by the constituent marketing boards respectively;

and the board to administer a development scheme is hereafter in this Act referred to as “a development board.”

(2) The provisions of the Second Schedule to this Act shall apply with respect to the constitution, incidental functions, and winding-up of a development board.

Regulatory
provisions
of develop-
ment
schemes.

6.—(1) A development scheme may require that no person shall produce the secondary product in any premises in the area to which a related marketing scheme for regulating the marketing of that product applies, unless either—

- (a) he is exempt from registration under that marketing scheme; or
- (b) there is in force in respect of those premises a licence (hereafter in this section referred to as “a producer’s licence”) granted by the development board, authorising the production of the said product in the premises;

and may empower the development board to grant a producer’s licence subject to such conditions as the board, having regard to the interests of the persons registered as producers under the related marketing schemes, think necessary for promoting efficient production of the said product in the premises to which the licence relates or for preventing or reducing excessive production of that product, and may further empower the development board to revoke a producer’s licence if any condition subject to which the licence was granted is contravened; so however that the scheme shall provide for securing—

- (i) that the grant of a producer’s licence in respect of any premises in which the secondary product was being produced at any time during the six

months immediately preceding the relevant date, shall not (unless such a licence previously granted in respect of those premises has been revoked) be refused before the expiration of such period, not being less than one year nor more than two years from the day on which the scheme comes into force, as may be specified in the scheme; and

PART II.
—*cont.*

- (ii) that the grant of such a licence shall not be refused in respect of any premises except on such grounds as may be specified in the scheme.

In this subsection the expression “the relevant date” means, in relation to a development scheme submitted at any time during the year nineteen hundred and thirty-three, the first day of March, nineteen hundred and thirty-three, or, in relation to a development scheme submitted after that year, the date on which notice of the submission of the scheme was first published in accordance with this Act.

(2) A development scheme may empower the development board, so far as appears to them to be necessary for the purpose of preventing, eliminating or reducing inefficient or excessive production of the secondary product, to purchase by agreement any premises used for producing the said product in any area to which a related marketing scheme for regulating the marketing of that product applies, and to dispose, as the development board think fit, of any premises so purchased by them.

(3) Every development scheme shall provide for the following matters, that is to say :—

- (a) for securing that, in such class of cases as may be specified in the scheme or determined by the development board, compensation shall be payable by the board to any applicant for a producer's licence who is aggrieved by the refusal of the board to grant the licence or by any conditions attached thereto, as the case may be;
- (b) for securing that where any person producing, or desirous of producing, the secondary product in the area to which a related marketing scheme for regulating the marketing of that product applies, is aggrieved by any act or omission of

PART II.
—cont.

the development board, he may refer the matter to one or more arbitrators appointed in accordance with the development scheme, and for the manner in which any such reference is to be heard and determined;

- (c) for empowering the development board, for the purpose of defraying their expenses under the scheme, to levy from the constituent marketing boards contributions assessed on those boards in such proportions, in such manner, and subject to such limitations, as may be prescribed by the scheme;
- (d) for exempting from all or any of the provisions of the scheme producers of such classes or descriptions as may be specified in the scheme or determined by the development board, or the production of any such description of the secondary product as may be so specified or determined.

(4) A development scheme may further provide for all or any of the following matters, that is to say:—

- (a) for enabling the development board, subject to such conditions as may be specified in the scheme, to exercise any power of a constituent marketing board to grade, pack, store, adapt for sale, insure, advertise or transport an agricultural product, and any power of such a marketing board in connection with the regulation of sales of an agricultural product or the regulation of any matter mentioned in paragraph (f) of section five of the principal Act;
- (b) for requiring holders of producers' licences to furnish to the development board, or to any person authorised by that board, such estimates, returns, accounts and other information relating to the production of the secondary product as the development board consider necessary for the operation of the scheme; and for the imposition and recovery of penalties on and from any person who contravenes the provisions of the scheme made in pursuance of this paragraph;

PART II.
—cont.

- (c) for empowering any person authorised in writing by the development board, for the purpose of securing compliance with the scheme, to enter and inspect, at any reasonable time and on production of his authority, any such premises in the area to which a related marketing scheme for regulating the marketing of the secondary product applies as may be specified in the authority, being premises which the development board have reason to believe are used for producing the secondary product;
- (d) for enabling the development board to encourage, promote or conduct education and research in connection with the production and marketing of any agricultural product the marketing of which is regulated by a related marketing scheme;
- (e) for such matters as are necessary for giving effect to, or are incidental to, or consequential on, the provisions of the scheme made in pursuance of the foregoing provisions of this Act.

(5) Every person who produces any article in contravention of the provisions of a development scheme made in pursuance of subsection (1) of this section, shall be liable on summary conviction to imprisonment for a term not exceeding three months, or to a fine not exceeding one hundred pounds and an additional fine not exceeding the value of the said article, or, in the case of a second or subsequent offence, to both such imprisonment and fines, and every person who obstructs a person in the exercise of any powers conferred on him by virtue of paragraph (c) of subsection (4) of this section shall, for each offence, be liable on summary conviction to a fine not exceeding twenty pounds.

The court by whom a fine is imposed for an offence under this subsection may, if the court think fit, having regard to the prejudicial effect which the commission of the offence has had, or is likely to have, on the operation of the development scheme, direct that the whole or any part of the fine be paid to the development board.

PART II.

—cont.

Secondary
products
to which
Part II of
the Act
applies.

7.—(1) The secondary products to which this Part of this Act applies are bacon (including hams) and any such agricultural product, being a product wholly or partly manufactured or derived from another agricultural product, as may be specified by an order in force under this section.

(2) The Minister of Agriculture and Fisheries and the Secretaries of State concerned with agriculture in Scotland and Northern Ireland respectively, acting in conjunction, may, after consultation with the Board of Trade, lay before each House of Parliament the draft of an order directing that this Part of this Act shall apply to any such agricultural product, being a product wholly or partly manufactured or derived from another agricultural product, as may be specified in the order, and if each House resolves that the order be approved, the said Minister and Secretaries of State, acting as aforesaid, shall make the order.

Reports to
be laid
before
Parliament.

8. The Minister of Agriculture and Fisheries and the Secretaries of State concerned with agriculture in Scotland and Northern Ireland respectively shall, in the year nineteen hundred and thirty-four and in each subsequent year, lay before Parliament a report—

(a) upon the operation of all the development schemes for the time being in force; and

(b) upon the development schemes which have been submitted to them since the last report was laid before Parliament under this section or, in the case of the first report, since the commencement of this Act, but which have not come into force at the date of the report.

Validity and
commence-
ment of
orders
under
Part II.

9.—(1) The validity of an order made in pursuance of this Part of this Act shall not be called in question except in proceedings duly begun during the period of twenty-eight days from the day on which notice of the making of the order is first published in accordance with this Act.

(2) The court before whom any proceedings are duly taken for the purpose of questioning the validity of such an order as aforesaid may, upon application made by any party before the expiration of the said period of twenty-eight days, make an interim order directing that

the order in question shall not come into operation before the final determination of the proceedings.

PART II.
—cont.

(3) In any such proceedings as aforesaid no appeal shall, without the leave of the Court of Appeal or Court of Session, as the case may be, lie from that court to the House of Lords.

(4) Subject to the foregoing provisions of this section, every order made in pursuance of this Part of this Act shall come into operation at the end of the period of twenty-eight days from the day on which notice of the making of the order is first published in accordance with this Act and, unless the final decision in proceedings duly begun during the said period is that the order is invalid, the order shall be conclusive evidence that the requirements of this Act have been complied with in relation to the making of the order, and that the order and any scheme approved thereby have been duly made and approved respectively and are within the powers conferred by this Act.

PART III.

AMENDMENTS OF 21 & 22 GEO. 5. c. 42.

10.—(1) The principal Act shall have effect as if section five thereof were extended so as to enable any scheme under that Act to provide for the determination from time to time of the quantity of the regulated product or of any description thereof which may be sold by any registered producer, so, however, that the scheme shall either specify the method of determination or require the board to prescribe it, and, without prejudice to the generality of the foregoing provisions of this section, the method of determination may be such as to secure that the quantity (if any) which any particular registered producer may sell is determined wholly or partly by reference to the quantity of that product or description, as the case may be, which was, in some past period, produced, sold or otherwise dealt with on particular land or premises or by particular persons.

Regulation
of sales of
regulated
product.

(2) A scheme under the principal Act may provide for securing that, for all or any of the purposes of the scheme and of the said Act, the sale of any agricultural product wholly or partly manufactured or derived from

PART III.
—cont.

the regulated product shall be deemed to be a sale of the regulated product if the substance of the transaction between the seller and the buyer is that the seller, being in possession of the regulated product, agrees to subject it, or cause it to be subjected, to some process and to sell the resulting product to the buyer; and where, in the case of any such scheme as aforesaid, the regulated product is live stock of any kind, then, without prejudice to the foregoing provisions of this subsection, the scheme may provide for securing that, for all or any of the purposes aforesaid, a person shall be deemed to sell the regulated product if he sells the carcasses of any live stock of that kind, being live stock produced by him in the area to which the scheme is applicable.

Extension
of market-
ing boards'
powers by
order.

11.—(1) With a view to enabling effect to be given to an order under Part I of this Act regulating sales of an agricultural product, or to any arrangements made by persons producing an agricultural product in Great Britain as to the quantity of that product or of any description thereof which is to be produced or sold by them, the Minister may by order—

- (a) modify any scheme in force under the principal Act by inserting therein any provision which the scheme might contain by virtue of the last foregoing section;
- (b) modify any such scheme as aforesaid by inserting therein provisions for the determination from time to time of the descriptions of the regulated product which may be sold by any registered producer;
- (c) empower the board administering such a scheme as aforesaid to require every producer of the regulated product, not being a registered producer, to furnish to the board his name and address and such information relating to the regulated product as the board, with the approval of the Minister, may determine:

Provided that—

- (i) no order under this section shall be made in relation to any such scheme as aforesaid, other than a substitutional scheme, until the expiration of the suspensory period; and

- (ii) except with a view to enabling effect to be given to an order under Part I of this Act regulating sales of an agricultural product, no order under this section modifying a scheme or conferring any power on a board shall be made otherwise than at the request of the board.

PART III.
—cont.

(2) An order under this section may make such modifications in the scheme to which the order relates as appear to the Minister to be necessary for giving effect to, or to be incidental to, or consequential on, the provisions of the order made in pursuance of paragraph (a) or paragraph (b) of the foregoing subsection, and such modifications may include a provision requiring the board to impose on, and recover from, any registered producer who contravenes any provision of the scheme which has effect by virtue of the provisions of the order made in pursuance of the said paragraph (a) or paragraph (b), such monetary penalties as may be specified in the order, and may prescribe the manner in which such penalties may be recovered; and the order shall make such modifications (if any) in the said scheme as appear to the Minister to be necessary for securing that any provisions of the scheme relating to the right of a producer to refer to arbitration any matter arising between him and the board, and to the payment of compensation to registered producers, shall apply in relation to the order as they apply in relation to the scheme.

(3) If any producer from whom any information is demanded by a board in the exercise of their powers under the provisions of an order made in pursuance of paragraph (c) of subsection (1) of this section, fails to comply with the demand or knowingly makes any false statement in reply thereto, he shall for each offence be liable on summary conviction to imprisonment for a term not exceeding one month, or to a fine not exceeding twenty pounds, or to both such imprisonment and fine.

12. The principal Act shall have effect as if section five thereof were extended so as to enable any scheme under that Act to provide—

- (a) for empowering the board to receive the whole or any part of any sums payable by purchasers

Pooling and
distribution
of proceeds
of sales of
regulated
product.

PART III.
—cont.

of the regulated product in respect of sales of that product by registered producers; and.

- (b) for securing that any sums so received are distributed by the board to the sellers in such manner as may be specified in the scheme or prescribed by the board.

Consulta-
tion
between
marketing
boards and
other
persons.

13.—(1) The board administering a scheme under the principal Act shall have power to negotiate with any other person in respect of any matter concerning the marketing of the regulated product, or of any agricultural product from which the regulated product is wholly or partly manufactured or derived, or of any commodity wholly or partly manufactured or derived from the regulated product, and to agree with the other parties to the negotiations to bring into consultation in connection therewith such person as may be agreed between the parties or, in default of agreement, nominated by the Minister.

(2) The board administering a scheme under the principal Act may pay the whole or any part of the remuneration and expenses of any person whose function it is to advise the board in connection with the exercise of their powers under the scheme, or who is brought into consultation in connection with negotiations entered into by the board in pursuance of this section.

Composition
of market-
ing boards.

14.—(1) The board to administer a scheme under the principal Act, not being a scheme approved before the commencement of this Act, shall, subject to the provisions of the scheme as to the filling of casual vacancies in the board, be composed of—

- (a) persons elected, in accordance with the scheme, either by registered producers or by a body or bodies elected by such producers in accordance with the scheme; and
- (b) two persons co-opted to the board, in accordance with the scheme, by the elected members of the board after consultation with the Market Supply Committee :

Provided that—

- (i) during such period, not being longer than twelve months from the day on which the scheme comes into force, as may be

specified in the scheme, the board shall, subject as aforesaid, be composed of persons named in the scheme and two persons nominated by the Minister after consultation with the persons by whom the scheme was submitted; and

PART III.
—cont.

(ii) the co-option of any particular person to the board during the period of twelve months from the end of the period specified in the scheme for the purpose of paragraph (i) of this proviso shall be subject to the approval of the Minister.

(2) In the case of any scheme under the principal Act which was approved before the commencement of this Act, the Minister, after consultation with the board, may by order make such amendments in the scheme as appear to him to be necessary for securing that the composition of the board accords with the requirements of the foregoing subsection.

(3) Every person co-opted to a board for the purposes of this section shall be a person who, in the opinion of the persons co-opting him, is specially qualified for membership of the board by reason of his commercial or financial ability.

(4) The provisions of subsection (1) of section two of the principal Act which relate to the composition of boards shall cease to have effect.

15.—(1) Every scheme under the principal Act, not being a scheme approved before the commencement of this Act, shall require the board to appoint from among the members thereof an executive committee consisting of not more than seven persons, and shall provide—

Discharge of
functions of
marketing
boards by
executive
committees.

- (a) for the delegation to the said committee of all the functions of the board under the scheme, except such functions, if any, as may be specified in the scheme; and
- (b) for securing that at least one of the members of the board nominated by the Minister or co-opted in accordance with the last foregoing section shall be a member of the said committee.

PART III.
—cont.

(2) In the case of any scheme under the principal Act which was approved before the commencement of this Act, the Minister, after consultation with the board, may by order amend the scheme so as to make it conform with the requirements of the foregoing subsection.

Compensation under marketing schemes.

16.—(1) So much of paragraph (c) of subsection (1) of section seven of the principal Act as requires every scheme under that Act to provide for requiring the board by whom the scheme is to be administered to pay such sums by way of compensation as may be necessary for securing that the provisions of the scheme operate equitably as between all registered producers, shall cease to have effect, but compensation shall be payable under, and in accordance with, such a scheme as aforesaid by the board to registered producers in such class of cases as may be specified in the scheme.

(2) The operation of the provisions of a scheme relating to the payment of compensation shall, except in the case of a substitutional scheme, be suspended until the expiration of the suspensory period.

• Effect of marketing schemes on contracts.

17.—(1) The proviso to subsection (1) of section eight of the principal Act (which provides that certain contracts the performance of which is prohibited by or under any scheme under that Act must be registered in order not to be invalidated) shall apply, and shall be deemed always to have applied, to all such contracts as aforesaid, so however that, in relation to any contract made before the commencement of this Act, not being a contract made during the relevant period, the reference in the said proviso to “the expiration of three months after the prohibition first takes effect” shall be construed as a reference to the expiration of three months after the prohibition first takes effect or the expiration of three months after the commencement of this Act, whichever occurs the later.

(2) Where, in conformity with a scheme under the principal Act, any contract for the sale of the regulated product by a registered producer otherwise than to, or through the agency of, the board purports to confer on the board any right to receive from the purchaser the whole or any part of the purchase price payable under the contract, or of any damages for which the purchaser

may be liable in respect of a wrongful rejection of articles tendered in accordance with the contract, the board may enforce that right against the purchaser, notwithstanding that the board are not parties to the contract and notwithstanding that, as between the board and the purchaser, there is no consideration.

PART III.
—cont.

(3) Where any scheme in force under the principal Act provides—

- (a) for requiring registered producers to sell the regulated product or any description thereof only to, or through the agency of, the board; or
- (b) for the determination of the quantity of the regulated product or of any description thereof which may be sold by any registered producer;

then, notwithstanding anything in section eight of the principal Act, as amended by this Act, every contract (whether made before or after the commencement of this Act) whereby a registered producer undertakes to sell, otherwise than to, or through the agency of, the board, a quantity of an agricultural product determined by reference to the total quantity thereof from time to time produced by the registered producer or produced by him in any area or premises specified in the contract, shall, if and in so far as the performance of the contract is prohibited by or under the scheme, be void and unenforceable:

Provided that nothing in this subsection shall affect any cause of action which has arisen before the commencement of this Act.

18.—(1) An Agricultural Marketing Reorganisation Commission constituted under section fifteen of the principal Act, as amended by this section, may be charged with the duty of preparing a development scheme in accordance with the provisions of this Act, and accordingly, in subsection (1) of the said section fifteen, the reference to schemes for regulating the marketing of such agricultural products as the Minister may direct shall be construed as including a reference to development schemes for organising the production of such agricultural products, being secondary products to which Part II of this Act applies, as the Minister may direct, and the reference to the producers concerned

Extension
of functions
of Agricultural
Marketing
Reorganisa-
tion Com-
missions
and com-
mittees of
investiga-
tion.

PART III. shall, in relation to a development scheme, be construed
—cont. as a reference to the boards concerned.

(2) A committee of investigation appointed under section nine of the principal Act, as amended by this section, shall be charged with the duty, if the Minister so directs, of considering, and reporting to him on, any complaint made to him as to the operation of a development scheme, and accordingly subsections (4), (5) and (6) of the said section nine shall have effect as if references therein to a scheme under the principal Act included references to a development scheme.

(3) The areas for which Agricultural Marketing Reorganisation Commissions may be constituted under section fifteen of the principal Act, and for which committees of investigation are to be appointed under section nine of that Act, shall, in relation to development schemes, include the following areas, that is to say, England and Northern Ireland, Scotland and Northern Ireland, and the United Kingdom, and in relation to any such commission or committee for an area which includes Northern Ireland, references to the Minister in this section and in the principal Act, as amended by this Act, shall be construed as references to the Minister and to the Secretary of State concerned with agriculture in Northern Ireland :

Provided that—

- (a) the development schemes to be prepared by Agricultural Marketing Reorganisation Commissions for England and Northern Ireland, for Scotland and Northern Ireland or for the United Kingdom shall be schemes applicable in England and Northern Ireland, in Scotland and Northern Ireland, or in England, Scotland and Northern Ireland, as the case may be ; and
- (b) a committee of investigation shall not be appointed for England and Northern Ireland, for Scotland and Northern Ireland or for the United Kingdom, unless there is in force a development scheme applicable not only in Northern Ireland, but also in England, in Scotland, or in England and Scotland, as the case may be.

(4) The expenses incurred by the Minister by virtue of this section in connection with any Agricultural Marketing Reorganisation Commission or committee of investigation shall be defrayed out of moneys provided by Parliament.

PART III.
—cont.

(5) Such of the expenses incurred by the Minister under section sixteen of the principal Act, as amended by this section, in connection with any Agricultural Marketing Reorganisation Commission or committee of investigation constituted or appointed for an area which includes Northern Ireland, as may be determined by the Joint Exchequer Board to be properly payable by the Government of Northern Ireland, shall be made good by means of deductions from the Northern Ireland residuary share of reserved taxes.

19. The amendments specified in the Third Schedule to this Act, being minor and consequential amendments, shall be made in the provisions of the principal Act.

Minor and
consequential
amendments
of principal
Act.

PART IV.

MISCELLANEOUS AND SUPPLEMENTARY PROVISIONS.

20. Every contract made after the commencement of this Act for the sale of eggs in shell laid by domestic fowls or domestic ducks shall be void unless the eggs are contracted to be sold by weight or under a grade designation prescribed in relation to eggs under the Agricultural Produce (Grading and Marking) Act, 1928 :

Sale of eggs
to be by
weight or
under grade
designation.
18 & 19
Geo. 5. c. 19.

Provided that the foregoing provisions of this section shall not apply—

- (a) to any contract for the sale of less than twenty-five eggs; or
- (b) to any contract if and in so far as it relates to eggs produced outside Great Britain, or requires delivery to be made outside Great Britain.

21.—(1) The Board of Trade, with a view to enabling them to decide whether any regulation or control of the importation of an agricultural product into the United Kingdom is desirable or should be varied or discontinued, may by order require the occupier of any premises used by way of trade for the storage of that

Power of
Board of
Trade to
obtain in-
formation
as to stocks
of agricul-
tural pro-
ducts.

PART IV.
—cont.

product, or of any specified commodity wholly or partly manufactured or derived therefrom, or of any specified description of that product or of such a commodity as aforesaid, to make to the Board, so often, and in such form and manner, as may be prescribed by the order, a return showing the quantity of that product or commodity or of that description thereof, as the case may be, which was stored in the premises on any specified day or during any specified period.

An order under this section may be made so as to apply either to all such premises as aforesaid or to any specified class of such premises or to premises situate in any specified area.

(2) If any person fails to make a return which he is required under this section to make, or makes such a return which is, to his knowledge, false in any material particular, he shall be liable on summary conviction to imprisonment for a term not exceeding three months, or to a fine not exceeding fifty pounds, or to both such imprisonment and fine.

Payment
of certain
expenses by
boards ad-
ministering
schemes.

22.—(1) Subject to the provisions of this section, the board administering a scheme in force under the principal Act or a development scheme shall pay to the Minister or to the appropriate Minister, as the case may be, such sum (if any) as may be certified by him, after consultation with the Treasury, to represent—

- (a) the expenses of any Agricultural Marketing Reorganisation Commission attributable to the preparation of the scheme; or
- (b) where any such commission has been constituted at the request of the board, the expenses of the commission attributable to the investigation of any matter affecting the operation of the scheme.

(2) Subject to the following provisions of this section, the board administering any scheme under the principal Act, not being a substitutional scheme, shall pay to the persons by whom the scheme was submitted such sum (if any) as may be certified by the Minister to represent the expenses reasonably incurred by those persons in connection with the promotion, submission or bringing into operation of the scheme :

Provided that the board administering a scheme under the principal Act which came into force before the first day of April, nineteen hundred and thirty-three, shall not be obliged to make any payment under this subsection, but may, subject to the following provisions of this section, pay to the persons by whom the scheme was submitted the whole or any part of any sum certified by the Minister to represent the expenses reasonably incurred by those persons as aforesaid.

PART IV.
—cont.

(3) The board administering a scheme under the principal Act, not being a substitutional scheme, shall not make any payment under this section before the expiration of the suspensory period.

(4) Any expenses incurred by virtue of this Act by the board administering a scheme under the principal Act or a development scheme shall be deemed to be expenses incurred under that scheme, and if the scheme ceases to have effect at or before the expiration of the suspensory period, no payment under this section shall be made at any time by the board.

(5) The sums received under this section by the Minister or by the appropriate Minister shall be paid into the Exchequer; but, in determining the amount of the expenses properly payable by the Government of Northern Ireland for the purposes of this Act or of the principal Act, as amended by this Act, the Joint Exchequer Board shall have regard to the proportions in which any sum so received as aforesaid from the board administering a development scheme is attributable to Northern Ireland and to Great Britain respectively.

23.—(1) Where a motion made in either House of Parliament on behalf of His Majesty's Government for the approval of a scheme under the principal Act the draft of which has been laid before that House in accordance with subsection (8) of section one of the said Act, is negatived or withdrawn, there shall be paid out of the appropriate agricultural marketing fund to the persons by whom the scheme was submitted such sum (if any) as may be certified by the Minister to represent the expenses reasonably incurred by those persons in connection with the promotion or submission of the scheme, and the amount of any sum paid out of a fund in accordance with this section shall be written off the account of the assets of that fund.

Payment of
certain
expenses
out of agri-
cultural
marketing
funds.

PART IV.
—cont.

(2) In this section the expression “the appropriate agricultural marketing fund” means—

- (a) in relation to a scheme applicable in England only, the Agricultural Marketing Fund;
- (b) in relation to a scheme applicable in Scotland only, the Agricultural Marketing (Scotland) Fund;
- (c) in relation to a scheme applicable both in England and in Scotland, the Agricultural Marketing Fund and the Agricultural Marketing (Scotland) Fund;

and where any sum is required under this section to be paid out of both the said funds, it shall be paid thereout in such proportions respectively as may be determined by the Minister.

Restrictions
on dis-
closing
information.

24.—(1) No individual return or part of a return made to the Board of Trade in accordance with an order of the Board under this Part of this Act shall, without the authority of the person by whom it was made, be disclosed except in so far as it is required to be disclosed for the purpose of legal proceedings under this Act or for the purpose of any report of such proceedings, and any person by whom any such individual return or part of a return is disclosed in contravention of this subsection, shall be liable on summary conviction to imprisonment for a term not exceeding three months, or to a fine not exceeding fifty pounds, or to both such imprisonment and fine.

(2) Section seventeen of the principal Act (which imposes restrictions on the disclosure of information obtained under that Act) shall have effect as if references in that section to the principal Act, to a board and to a scheme under that Act included references to this Act, to a development board and to a development scheme respectively.

Offences
committed
by bodies
corporate.

25. Where any offence under the principal Act or this Act committed by a body corporate is proved to have been committed with the consent or approval of any director, manager, secretary or other officer of the body corporate, he, as well as the body corporate, shall be deemed to be guilty of the offence and shall be liable to be proceeded against and punished accordingly.

26.—(1) Every order under this Act shall, as soon as may be after it is made, be laid before both Houses of Parliament.

PART IV.
—cont.
Provisions
as to orders.

(2) As soon as may be after any order is made under this Act, the authority making the order shall, in such manner as that authority thinks best for informing persons concerned, publish a notice stating that the order has been made and specifying a place where copies of the order may be purchased.

(3) Where any of the provisions of this Act, not being a provision contained in Part II of this Act, confers a power to make an order, the power shall be construed as including a power, exerciseable in the like manner, to vary or revoke the order by a subsequent order.

(4) Any order under Part I of this Act, and any order under section eleven of this Act, shall cease to have effect on the expiration of a period of twenty-eight days from the date on which it is made, unless, at some time before the expiration of that period, it has been approved by a resolution passed by each House of Parliament, but without prejudice to anything previously done under the order or to the making of a new order.

In reckoning any such period of twenty-eight days as aforesaid, no account shall be taken of any time during which Parliament is dissolved or prorogued, or during which the Commons House is adjourned for more than four days.

(5) Notwithstanding anything in subsection (4) of section one of the Rules Publication Act, 1893, an order under this Act shall be deemed not to be a statutory rule to which that section applies.

56 & 57
Vict. c. 66.

27.—(1) Any order authorised under this Act to be made by the Board of Trade may be made by the President of the Board or, in his absence, by a Secretary of State, and any other thing required or authorised under this Act to be done by or to the Board of Trade may be done by or to the President of the Board or any person authorised by him in that behalf.

Exercise of
powers.

(2) Where anything required or authorised under this Act to be done by the appropriate Minister falls

PART IV.
—cont.

to be done by two or more authorities, it shall be done by those authorities acting in conjunction.

Provisions
as to *
Northern
Ireland.

10 & 11
Geo. 5. c. 67.

28.—(1) Legislation enacted by the Parliament of Northern Ireland, enabling schemes to be made for regulating the marketing of agricultural products, may, notwithstanding any limitation imposed by section four of the Government of Ireland Act, 1920, on the power of the said Parliament to make laws,—

- (a) authorise or require the making of provision in such schemes for all or any of the matters for which provision may or must be made in schemes under the principal Act; and
- (b) confer on boards administering such schemes, all or any of the powers conferred by the principal Act and this Act on boards administering schemes under that Act; and
- (c) enable regulations to be made for regulating the removal from Northern Ireland into Great Britain of any agricultural product the marketing of which is regulated by a scheme for the time being in force under the principal Act or under such legislation as aforesaid enacted by the Parliament of Northern Ireland :

Provided that any scheme or regulation made under such legislation as aforesaid enacted by the Parliament of Northern Ireland shall, in so far as the scheme or regulation involves or may involve a matter in respect of which any limitation is so imposed as aforesaid, have effect only if, and so long as, there is in force a certificate given by the Secretary of State concerned with agriculture in Northern Ireland, certifying that it is expedient that the scheme or regulation, as the case may be, should have full effect, as subserving the purposes of—

- (i) an order under Part I of this Act regulating sales of an agricultural product; or
- (ii) a scheme under the principal Act; or
- (iii) arrangements made by persons producing an agricultural product in Great Britain as to the quantity of that product, or of any description thereof, which is to be produced or sold by them;

and the said Secretary of State may at any time revoke a certificate given by him for the purposes of this proviso, but without prejudice to anything previously done under the scheme or regulations in respect of which the certificate was given, or to the making of a new scheme or new regulations, as the case may be.

PART IV.
—*cont.*

(2) Without prejudice to the generality of the powers conferred by paragraph (c) of subsection (1) of this section, regulations made by virtue of those powers may regulate the removal from Northern Ireland into Great Britain of the agricultural product to which the regulations relate by determining for any such period as may be specified in the regulations—

- (a) the quantity of the product, or of any description thereof, which may be so removed;
- (b) the descriptions of the product which may be so removed.

(3) Before giving or revoking a certificate under this section, the Secretary of State concerned with agriculture in Northern Ireland shall consult the Board of Trade, the Minister of Agriculture and Fisheries and the Secretary of State for Scotland.

(4) For the purpose of negotiations between the board administering a scheme under the principal Act and the board administering an agricultural marketing scheme applicable in Northern Ireland, the provisions of Part III of this Act relating to the power of the board administering a scheme under the principal Act to negotiate with other persons shall have effect as if the reference therein to the Minister were a reference to the Minister and to the Secretary of State concerned with agriculture in Northern Ireland.

29.—(1) In this Act, unless the context otherwise requires, the following expressions have the meanings hereby respectively assigned to them, that is to say:—

Interpreta-
tion.

“Agricultural marketing scheme” means a scheme for regulating the marketing of an agricultural product either under the principal Act or under corresponding legislation enacted by the Parliament of Northern Ireland:

PART IV.
—cont.

“The appropriate Minister” means, in relation to a development scheme which has not yet come into force,—

(a) if any of the related marketing schemes is a scheme applying in Northern Ireland, the Minister or Ministers, as the case may be, by whom the related marketing schemes applying in Great Britain were approved, and the Secretary of State concerned with agriculture in Northern Ireland; or

(b) in any other case, the Minister or Ministers, as the case may be, by whom the related marketing schemes were approved;

and means, in relation to a development scheme which has come into force, the Minister or Ministers, as the case may be, by whom that scheme was approved :

“Constituent marketing board” means, in relation to a development scheme, a board by whom that scheme was submitted :

“The development board” means, in relation to a development scheme, the board to administer that scheme :

21 & 22
Geo. 5. c. 42.

“The principal Act” means the Agricultural Marketing Act, 1931 :

“Related marketing scheme” means, in relation to a development scheme, an agricultural marketing scheme administered by a constituent marketing board :

“The secondary product” means, in relation to a development scheme, the agricultural product for organising the production of which provision is made by that scheme.

(2) For the purposes of this Act, any branch of industry which is engaged in the production of an agricultural product shall be deemed to be a branch of the agricultural industry.

(3) Except where the context otherwise requires, expressions used in this Act have respectively the same meanings as in the principal Act.

(4) In the application of this Act to Scotland, any reference to a board administering a scheme under the principal Act shall include a reference to the governing body of an agricultural society administering such a scheme in virtue of subsection (3) of section nineteen of the principal Act, and any reference to an Agricultural Marketing Reorganisation Commission shall include a reference to an organisation, or the governing body thereof, in which any of the powers and duties of such a commission are vested in pursuance of subsection (7) of the said section.

PART IV.
—cont.

30.—(1) This Act may be cited as the Agricultural Marketing Act, 1933, and the principal Act and this Act may be cited together as the Agricultural Marketing Acts, 1931 and 1933.

Short title.
citation and
repeal.

(2) The enactment mentioned in the Fourth Schedule to this Act is hereby repealed to the extent specified in the third column of that Schedule.

SCHEDULES.

FIRST SCHEDULE.

PART I.

PROCEDURE IN CONNECTION WITH SUBMISSION AND APPROVAL OF DEVELOPMENT SCHEMES.

Section 4 (2).

1. As soon as may be after submitting a development scheme, the constituent marketing boards shall, in such manner as the appropriate Minister may direct, publish a notice of the submission of the scheme, specifying the place where copies of the scheme may be obtained (on payment of such fee as may be specified in the notice) and inspected, and the time (which shall not be less than six weeks after the date of the publication of the notice) within which, and the manner in which, objections and representations with respect to the scheme may be made.

2. The appropriate Minister, after considering any development scheme duly submitted for his approval and any objections and representations duly made with respect thereto, may make such modifications in the scheme as he thinks proper :

1ST SCH.
—cont.

Provided that before making any modifications, the appropriate Minister shall give notice of the proposed modifications to the constituent marketing boards, and unless, within four weeks after notice has been so given or within such longer time as the appropriate Minister may allow, those boards notify him that they assent to the modifications, he shall take no further action in the matter.

3. The draft of a development scheme shall not be laid before Parliament unless and until the appropriate Minister is satisfied that there has been duly held, under each of the related marketing schemes, a general meeting of the persons registered as producers under that marketing scheme, and that the development scheme has been approved in terms of the draft by the decision of that meeting, and the provisions of a related marketing scheme as to general meetings of registered producers shall apply in relation to a meeting held for the purpose of this paragraph as they apply in relation to meetings held for the purposes of the scheme:

Provided that—

- (a) if any of the related marketing schemes makes no provision, or appears to the appropriate Minister to make no sufficient provision, as to general meetings of registered producers, the appropriate Minister may direct the board to convene a general meeting of such producers for the purpose of this paragraph, and the voting and the procedure at the meeting shall be regulated in accordance with such directions as may be given by the appropriate Minister; and any meeting of persons registered as producers under a scheme which is held in accordance with such directions as aforesaid shall be deemed, for the purpose of this paragraph, to have been held under that scheme; and
- (b) a person who is registered as a producer under a scheme, though exempt from registration thereunder, shall, notwithstanding anything in the scheme, not be entitled to vote at any meeting of persons registered as producers under the scheme which is held for the purpose of this paragraph.

Section 4 (3).

PART II.

AMENDMENT AND REVOCATION OF DEVELOPMENT SCHEMES.

1. A development scheme may be revoked by a subsequent development scheme submitted and approved under this Act, and where such a scheme is so revoked, the subsequent

scheme may provide for the transfer to the new board of the whole or any part of the property, rights and liabilities of the existing board, for the continuation by or against the new board of any legal proceedings by or against the existing board, and for the dissolution, without winding up, of the existing board :

1st SCH.
—cont.

Provided that, in the case of a development scheme which provides for revoking a previous development scheme, the provisions of paragraph (i) of subsection (1) of section six of this Act shall not apply except in relation to premises which are situate in an area as respects which the revoking scheme provides for organising the production of the secondary product, but are not situate in any area as respects which the scheme to be revoked provides for organising such production.

In this paragraph the expression “ new board ” means the board by whom the revoking scheme is to be administered, and the expression “ existing board ” means the board administering the scheme to be revoked.

2. The appropriate Minister shall by order revoke a development scheme—

- (1) if an order is made for the winding up of the development board ; or
- (2) if, by reason of the amendment or revocation of the related marketing schemes or any of them,—
 - (a) the provisions of the development scheme relating to the production of the secondary product are no longer operative ; or
 - (b) the related marketing schemes no longer include both a scheme under the principal Act for regulating the marketing of the secondary product and a scheme under that Act for regulating the marketing of an agricultural product from which the secondary product is wholly or partly manufactured or derived,

and shall so revoke a development scheme not later than the end of the period of six weeks from the date on which he is requested in writing by the development board so to do, unless the board have previously notified him that they desire to withdraw the request ; and where any of the related marketing schemes is revoked, the appropriate Minister shall by order make such amendments (if any) in the development scheme as appear to him to be necessary for securing that the members of the development board, other than the members appointed by him, represent only the boards administering the related marketing schemes which remain in force.

1ST SCH.
—cont.

3. Without prejudice to any other powers conferred on him by this Act, the appropriate Minister, if he is of opinion that any provision of a development scheme or any act or omission of the board administering such a scheme, is contrary to the interest of consumers of the secondary product or contrary to the interest of a substantial number of persons affected by the scheme, and is not in the public interest, may lay before each House of Parliament the draft of an order revoking the scheme, and if each House resolves that the order be approved, the appropriate Minister shall make the order to take effect on such date after the passing of the last of the resolutions of approval as may be specified in the order.

In considering, for the purposes of this paragraph, whether any provision of a development scheme or any act or omission of the board administering such a scheme is contrary to the interest of consumers of the secondary product, the appropriate Minister shall have regard to the interest of persons who purchase that product, or commodities wholly or partly produced therefrom, for their own consumption or use, and not to the interest of persons who purchase that product or such commodities as aforesaid for the purpose of any trade or industry carried on by them.

4. The board administering a development scheme shall not be deemed to be dissolved by reason only that the scheme has been revoked, and (except in the case where the board is dissolved, without winding up, under paragraph 1 of this Part of this Schedule) so much of the scheme as relates to the winding up of the board shall continue in force notwithstanding revocation.

5. Where a development scheme is revoked, or is so amended as to revoke any provision thereof, subsection (2) of section thirty-eight of the Interpretation Act, 1889, (which relates to the effect of repeals) shall apply as if the revocation of the scheme or of that provision, as the case may be, were the repeal of an enactment by another Act.

Section 5 (2).

SECOND SCHEDULE.

CONSTITUTION, INCIDENTAL FUNCTIONS AND WINDING UP OF DEVELOPMENT BOARDS.

1. Every development scheme shall provide for the following matters, that is to say:—

- (a) for the constitution of the development board as a body corporate with a common seal and power to hold land without licence in mortmain;

- (b) as to the manner in which the moneys of the development board may be invested;
- (c) for securing that the development board shall have an office in Great Britain at which communications and notices will at all times be received, and for requiring the board to notify to the appropriate Minister the address of that office and any change in that address;
- (d) for the keeping of accounts by the development board, and for the audit of such accounts;
- (e) for the furnishing by the development board to the appropriate Minister, and to the constituent marketing boards, of accounts, returns and other information, including an annual balance sheet and either an annual income and expenditure account or, if the development board trade for profit, an annual profit and loss account;
- (f) for requiring the development board to furnish a copy of their balance sheet to any person at his request and on payment of such fee as may be prescribed in the scheme.

2ND SCH.
—cont.

2. A development scheme may empower the development board to borrow money for the purpose of exercising their functions under the scheme.

3. In the case of every development board, the address of the office of the board in Great Britain shall be shown in a register, which shall be kept by the appropriate Minister, and the said register shall be open to inspection by the public at such times and at such place as the appropriate Minister may direct.

4. Every development scheme shall provide for the winding up of the development board, and paragraphs 3 to 6 of the Second Schedule to the principal Act shall apply in relation to development schemes and development boards as they apply in relation to schemes under the principal Act and boards administering schemes under that Act, so, however, that, in relation to a development scheme, the references in paragraphs 4 and 6 of the said Schedule to the Minister shall be construed as references to the appropriate Minister, and in paragraph 4 of the said Schedule the reference to the principal Act shall be construed as a reference to this Act.

5. In the event of the winding up of the development board constituted to administer a development scheme, the constituent marketing boards shall be severally liable to contribute to the payment of the debts and liabilities of the development board, and to the payment of the costs and expenses of the winding up, an amount assessed on those marketing boards in such proportions, in such manner, and subject to such limitations, as may be

2ND SCH.
—cont.

prescribed by the scheme, but, save as aforesaid, no person shall be liable to contribute to the assets of the development board in the winding up by reason only of his being or having been a member of the development board or of a constituent marketing board.

Section 19.

THIRD SCHEDULE.

MINOR AND CONSEQUENTIAL AMENDMENTS OF PRINCIPAL ACT.

In section four, in subsection (3), there shall be substituted for the words "the list aforesaid" the words "any list under this section," and at the end of the section there shall be inserted the following subsection:—

"(5) With a view to facilitating the due submission of a scheme, the Minister, if he thinks fit, may, at the request of any person, cause such a list as aforesaid to be compiled and to be supplied to him on payment of a fee of such amount as may be certified by the Minister to represent the cost of compiling the list."

In section five, in paragraph (b), for the words "kind, variety, or grade," in each place where those words occur, there shall be substituted the word "description"; for paragraph (e) there shall be substituted the following paragraph:—

"(e) for the determination from time to time—

(i) of the descriptions of the regulated product which may be sold by any registered producer;

(ii) of the price at, below or above which, the terms on which, and the persons to, or through the agency of whom, the regulated product, or any description or quantity thereof, may be sold as aforesaid;

in paragraph (f), for the words "kind, variety," and for the words "kind, variety, grade," there shall be substituted the word "description"; and in paragraph (i) there shall be inserted after the words "to encourage" the words "promote or conduct."

In section six, after subsection (1), there shall be inserted the following subsection:—

"(1A) A scheme may provide for securing that where, by reason of a registered producer dying, or becoming subject to some legal disability, or entering into a composition or scheme of arrangement with his creditors,

any property in, or control of, the regulated product is transferred from the registered producer to a personal representative, trustee, committee or other person, the personal representative, trustee, committee or other person, as the case may be, shall, in such circumstances and in respect of such matters as may be specified in the scheme, be deemed to be a producer."

3RD SCH.
—cont.

In section seven, in paragraph (b) of subsection (1), for the words "enabling the board to recover from every registered producer" there shall be substituted the words "the payment by registered producers of," and for the words "each producer" there shall be substituted the word "producers"; and in paragraph (c) of subsection (1), there shall be substituted for the words "to registered producers, in proportion to their respective contributions to the fund" the words "in such manner as may be provided by the scheme."

In section eight, in subsection (1), the words "made during the relevant period" shall be omitted, and for the words "the foregoing provision" and the words "this subsection" there shall be substituted respectively the words "this subsection" and the words "this Act", and the last paragraph of subsection (1) shall have effect as a separate subsection and shall be numbered "(1A)"; in subsection (2), for the words "a contract," where those words first occur, there shall be substituted the words "such a contract as aforesaid," and for the words "the board are of opinion" there shall be substituted the words—

"(a) the application is made after the time at which it is provided by the proviso to subsection (1) of this section, as amended by any subsequent enactment, that that subsection shall cease to apply to the contract; or

(b) the board are of opinion—

(i) that the contract is unenforceable by any party thereto by virtue of the provisions of section four of the Statute of Frauds or section four of the Sale of Goods Act, 1893; or

(ii) in the case of a contract made during the relevant period";

29 Car. 2.
c. 3.
56 & 57
Vict. c. 71.

and in subsection (3), for the words "the contract is found by the Court not to have been made with a view to evading the operation of the scheme" there shall be substituted the words "the Court finds—

(a) that the application for registration of the contract was made before the time at which it is provided by the proviso to subsection (1) of this section, as amended by any subsequent enactment, that that subsection shall cease to apply to the contract; and

3RD SCH.
—cont.

(b) that the contract is not unenforceable by any party thereto by virtue of the provisions of section four of the Statute of Frauds or section four of the Sale of Goods Act, 1893; and

(c) in the case of a contract made during the relevant period, that the contract was not made with a view to evading the operation of the scheme";

for the word "thereof" there shall be substituted the words "of the contract," after the words "but, where" there shall be inserted the words "in the case of a contract made during the relevant period," and for the words "a contract" there shall be substituted the words "the contract."

In section fifteen, in subsection (1), there shall be inserted after the words "which shall" the words "if the Minister so directs".

In section sixteen, in subsection (3), there shall be inserted after the word "meetings" the word "quorum".

After section sixteen there shall be inserted the following section:—

"Registra-
tion of
producers
being firms.

16A. Registration under a scheme of the name or style under which two or more persons carry on business in partnership as producers, shall operate as the registration of all the partners for the time being, so, however, that for the purposes of those provisions of this Act and of the scheme which relate to elections, polls and voting at meetings, and to the assessment of contributions on registered producers, all the partners shall be regarded as constituting together a single registered producer."

In Part II of the First Schedule, for sub-paragraph (c) of paragraph 1 there shall be substituted the following sub-paragraph:—

"(c) where an amendment is duly submitted to the Minister as aforesaid, the provisions of subsections (3), (4), (5), (6) and (8) of section one of this Act shall apply with respect to the amendment as they apply with respect to a scheme, subject to the following modifications, that is to say:—

(i) the said subsection (5) shall have effect as if paragraph (b) of the proviso thereto were omitted, and as if the following paragraph were substituted for paragraph (c) of the said proviso:—

'(c) before making any modifications, the Minister shall give notice of the proposed modifications to the board, and unless, within four weeks after notice has been so given or within

such longer time as the Minister may allow, the board notify the Minister that they assent to the modifications, the Minister shall take no further action in the matter'; and

3RD SCH.
—cont.

(ii) the said subsection (8) shall have effect as if the words 'is satisfied that the amendment will conduce to the more efficient operation of the scheme' were substituted for the words 'is satisfied that the scheme will conduce to the more efficient production and marketing of the regulated product'; and

(iii) except in a case where the Minister is required to direct a public inquiry to be held under the provisions of paragraph (a) of the proviso to the said subsection (5), the provisions of the said subsection (8) requiring the draft to be laid before Parliament and approval of the draft by each House of Parliament before the Minister approves a scheme shall not apply";

and at the end of paragraph 1 there shall be inserted the following proviso:

"Provided that no scheme shall be amended so as to be applicable to any area to which it would not have been applicable without amendment."

FOURTH SCHEDULE.

Section 30
(2).

ENACTMENT REPEALED.

Session and Chapter.	Short Title.	Extent of Repeal.
21 & 22 Geo. 5. c. 42.	The Agricultural Marketing Act, 1931.	In section two the words from "which shall" to the end of subsection (1); in section seven, in paragraph (c) of subsection (1), the words from "for requiring" to "producers, and"; in section eight, in subsection (1), the words "made during the relevant period".